

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Noriega	Team: Team # 5	CCRB Case #: 201010136	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/17/2010 12:46 AM	Location of Incident: Claremont Park	18 Mo. SOL 1/17/2012	Precinct: 44		
Date/Time CV Reported Wed, 07/21/2010 12:36 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/21/2010 1:03 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Greaney	20646	947762	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Natalia Abreu	28606	945452	PBBX IRT
2. POM Richard Mclees	07781	948092	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Greaney	Force: PO Michael Greaney used a chokehold against § 87(2)(b)	A . Unsubstantiated
B . POM Michael Greaney	Abuse: PO Michael Greaney threatened to arrest § 87(2)(b)	B . Exonerated
C . POM Michael Greaney	Abuse: PO Michael Greaney frisked § 87(2)(b)	C . Unsubstantiated
D . POM Michael Greaney	Abuse: PO Michael Greaney searched § 87(2)(b)	D . Unsubstantiated
E . POM Michael Greaney	Discourtesy: PO Michael Greaney spoke obscenely and/or rudely to § 87(2)(b)	E . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint by telephone with IAB on July 21, 2010. IAB referred the complaint to the CCRB on July 26, 2010.

On July 17, 2010, at approximately 12:46 a.m., inside of Claremont Park in the Bronx (near the intersection of Monroe Avenue and Webster Avenue), § 87(2)(b) was issued a summons § 87(2)(a) 160.50 by PO Natalia Abreu, who was in the company of PO Michael Greaney, both of the Patrol Borough Bronx Impact Response Team. The following allegations emerged from the incident:

- **Allegation A – Force:** PO Michael Greaney used a chokehold against § 87(2)(b) § 87(2)(g). It is recommended that **Allegation A** be closed as **unsubstantiated**.
- **Allegation B – Abuse of Authority:** PO Michael Greaney threatened to arrest § 87(2)(b) § 87(2)(g). It is therefore recommended that **Allegation B** be closed as **exonerated**.
- **Allegation C – Abuse of Authority:** PO Michael Greaney frisked § 87(2)(b).
- **Allegation D – Abuse of Authority:** PO Michael Greaney searched § 87(2)(b) § 87(2)(g). It is recommended that **Allegations C and D** be closed as **unsubstantiated**.
- **Allegation E – Discourtesy:** PO Michael Greaney spoke discourteously and/or rudely to § 87(2)(b) § 87(2)(g). It is recommended that **Allegation E** be closed as **unsubstantiated**.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a Hispanic male, § 87(2)(b) § 87(2)(b) with black hair and brown eyes.

Statements to Medical Personnel

§ 87(2)(a) PBH §18(6)

Statement to IAB

§ 87(2)(b) provided a phone statement to IAB upon filing his complaint on July 21, 2010 [Encl. 2 A]. § 87(2)(g)

CCRB Testimony

§ 87(2)(b) provided a phone statement on July 29, 2010 [Encl. 2 D], was interviewed at the CCRB on August 26, 2010 [Encl. E-K], and provided an additional phone statement on August 31, 2010 [Encl. 2 L]. § 87(2)(g).

On July 17, 2010, at approximately 12:46 a.m., § 87(2)(b) was gathered in Claremont Park in the Bronx, near the intersection of Monroe Avenue and Webster Avenue, with two acquaintances whose names § 87(2)(b) did not know, one of whom was identified by the investigation as § 87(2)(b). § 87(2)(b) could identify the other only by the first name “§ 87(2)(b).” § 87(2)(b) stated the three were not drinking, though there were some empty beer bottles that did not belong to them scattered in the vicinity. A marked patrol van pulled up and two uniformed officers emerged, identified by the investigation as PO Natalia Abreu and PO Michael Greaney. § 87(2)(b) described PO Greaney as a white male with blond hair, standing about 5’9” and weighing about 200 lbs. PO Abreu approached § 87(2)(b) and “§ 87(2)(b) who were sitting on a bench; PO Greaney approached § 87(2)(b) who was standing. PO Greaney asked § 87(2)(b) if he had any drugs or anything else illegal on his person; § 87(2)(b) said he did not. PO Greaney then began to accuse § 87(2)(b) of hiding something in his mouth. § 87(2)(b) denied this. PO Greaney then choked § 87(2)(b) holding him by the front of the neck with both hands. § 87(2)(b) stated that he was barely able to breathe during this time. Still holding him in this chokehold, PO Greaney pushed § 87(2)(b) face-forward against the hood of the police van, such that his chest struck the vehicle. § 87(2)(b) had voluntarily placed his hands behind his back and was offering no resistance. PO Greaney then let go of § 87(2)(b)’s neck and punched him five to seven times in the back of the neck, directly above his back. § 87(2)(b) verbally protested these actions but did not offer any physical resistance. PO Greaney then pushed § 87(2)(b) to the ground and forcefully placed a knee against his back. From this position, PO Greaney said to § 87(2)(b) “If you have something, you’re going to be in jail for life.”

PO Greaney then lifted § 87(2)(b) to his feet and frisked him, feeling his outer clothing throughout his body. PO Greaney then inserted his hands into § 87(2)(b)’s pockets and removed the objects therein. After the search, § 87(2)(b) attempted to read PO Greaney’s name and badge number from his shield; however, PO Greaney shined a flashlight into § 87(2)(b)’s eyes and prevented him from doing so. § 87(2)(b) believed PO Greaney saw his efforts to look at his badge and did this deliberately. However, § 87(2)(b) never specifically asked PO Greaney for his name or his shield number.

Throughout this time, PO Abreu had remained with § 87(2)(b). She then handed summonses to § 87(2)(b) and § 87(2)(b) § 87(2)(a) 160.50. As the officers returned to their van, PO Greaney said to § 87(2)(b) “Get the fuck out of here.” The officers then left the scene.

Witness: § 87(2)(b)

- § 87(2)(b) is a black female, § 87(2)(b), § 87(2)(b) with brown hair and brown eyes.
- § 87(2)(b) is a student at § 87(2)(b)

Phone Statement

§ 87(2)(b) was interviewed over the telephone on January 25, 2011 [Encl. 2 M-N]. § 87(2)(b) was also asked to mail a notarized, sworn statement to the CCRB; as of June 7, 2011, § 87(2)(b) has not returned the verification statement.

§ 87(2)(b) stated that, at about 12:45 a.m. on July 17, 2011, she and her friend “§ 87(2)(b) were in the company of a male whose name § 87(2)(b) could not remember, identified by the investigation as § 87(2)(b) in Claremont Park in the Bronx. § 87(2)(b) also stated that she had

since lost contact with “§ 87(2)(b) and could not provide additional contact information for her.) The three were sitting on a bench and drinking beer out of glass bottles when they were approached by PO Abreu and PO Greaney. § 87(2)(b) stated that, though she had been drinking, she did not consider that she was intoxicated. PO Abreu asked § 87(2)(b) for ID, while PO Greaney interacted with § 87(2)(b) PO Greaney and § 87(2)(b) were standing about five to seven feet away from the bench. While § 87(2)(b) was talking to PO Abreu, she was not paying attention to the interaction between § 87(2)(b) and PO Greaney; however, about three minutes after the officers’ arrival, she heard § 87(2)(b) cry out in protest, then looked to see PO Greaney holding one of § 87(2)(b)s arms behind his back and ordering him to spit out whatever he had in his mouth. When § 87(2)(b) denied having anything in his mouth, PO Greaney punched him approximately two times in the upper back, approximately in the area between his shoulder blades. § 87(2)(b) did not recall how the physical interaction between PO Greaney and § 87(2)(b) came to an end. She did not recall seeing PO Greaney choke § 87(2)(b) bring him to the ground, threaten to arrest him, or frisk or search him. However, § 87(2)(b) did not specifically state that these things did not happen and acknowledged that she could not recall several portions of the incident in detail.

After the interaction between PO Greaney and § 87(2)(b) ended, PO Abreu issued summonses § 87(2)(a) 160.50 to § 87(2)(b) and § 87(2)(b) “§ 87(2)(b) was not issued a summons. The officers then left the scene.

NYPD Statements:

Subject Officer: PO MICHAEL GREANEY

- *PO Greaney is a white male, § 87(2)(b) with blond hair and blue eyes.*
- *On July 17, 2011, PO Greaney worked an Impact overtime tour from 11:30 p.m. until 6:05 a.m., in uniform, in a marked patrol van, with PO Natalia Abreu and PO Richard McLees.*

Memo Book

PO Greaney documented the incident in his memo book [Encl. 3 F-H] indicating that one male and one female were stopped at 12:56 a.m. on July 17, 2010, and both were issued criminal summonses by PO Abreu. PO Greaney also had a memo book entry indicating that PO McLees had executed an arrest at 12:15 a.m.

CCRB Testimony

PO Greaney was interviewed at the CCRB on April 25, 2011 [Encl. 3 I-J]. He had no independent recollection of the incident. PO Greaney was presented with a photograph of § 87(2)(b) photocopies of the summonses issued by PO Abreu, and a verbal overview of the incident as described by the civilians involved (i.e., descriptions of the civilians and a general outline of events). None of these caused PO Greaney to recall the incident. PO Greaney stated that he did not recall accusing § 87(2)(b) of concealing something in his mouth, choking § 87(2)(b) punching him anywhere on his person, bringing him to the ground, threatening to arrest him, frisking him or searching him, or telling him to “Get the fuck out of here.”

During his interview, PO Greaney stated that, given his recent arrest, PO McLees was probably at the stationhouse during the incident in question. PO Greaney was also told that his officially NYPD pedigree listed his hair as black; PO Greaney confirmed this as erroneous and verified the pedigree information he provided for his interview as accurate.

Witness Officer: PO NATALIA ABREU

- *PO Abreu is a Hispanic female, § 87(2)(b) with brown hair and brown eyes.*
- *On July 17, 2011, PO Abreu worked an Impact overtime tour from 11:30 p.m. until 6:05 a.m., in uniform, in a marked patrol van, with PO Michael Greaney and PO Richard McLees.*

Memo Book

PO Abreu documented the incident in her memo book [Encl. 3A-C] by recording that she issued two criminal summonses to § 87(2)(b) and § 87(2)(b) at 12:45 a.m. on July 17, 2010. PO Abreu also documented PO McLees' 12:15 a.m. arrest.

CCRB Testimony

PO Abreu was interviewed at the CCRB on February 22, 2011 [Encl. 3 D-E]. She did not have any independent recollection of the incident. She was presented with a photograph of § 87(2)(b) a description of the incident, and a photocopy of the summonses she issued to § 87(2)(b) and § 87(2)(b). None of these caused PO Abreu to recall the incident. PO Abreu further stated that Claremont Park is the site of frequent criminal summonses § 87(2)(a) 160.50. Moreover, the tour she worked on July 17, 2010 was an Impact overtime tour and was thus geared specifically towards issuing summonses; as such, she stated, she was less likely to recall the circumstances of any individual summons issued that night.

Medical Records

§ 87(2)(a) PBH §18(6)

NYPD Documents

BADS

BADS records [Encl. 5 C] indicate that PO McLees arrested an individual named § 87(2)(b) at 12:15 a.m. on July 17, 2010 at § 87(2)(b).

Command Log

The arrest stamp for § 87(2)(b) is labeled on the 44th Precinct command log [Encl. 5 A] as having been recorded at 12:15 a.m. on July 17, 2010.

Officer Pedigree

According to the pedigree information on his official NYPD photograph [Encl. 5 B], PO Richard McLees is a Hispanic male standing 6'3" and weighing 230 lbs., with brown hair and hazel eyes.

Summonses for Incident and Disposition

- § 87(2)(a) 160.50

Status of Civil Proceedings

- As of May 23, 2011, § 87(2)(b) has not filed a Notice of Claim with the City of New

York regarding this incident.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] [Encl. 1 C].

Subject Officer CCRB History

- PO Greaney has been a member of the service for two years and there are no substantiated CCRB cases against him [Encl. 1 A-B].

Conclusion

Identification of Subject Officers and Pleading of Allegations

[§ 87(2)(g)]

[REDACTED]

Investigative Findings and Recommendations

Allegation A – Force: PO Michael Greaney used a chokehold against [§ 87(2)(b)]

[REDACTED]

§ 87(2)(g)

Allegation B – Abuse of Authority: PO Michael Greaney threatened to arrest

§ 87(2)(b)

§ 87(2)(g)

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Allegation C – Abuse of Authority: PO Michael Greaney frisked § 87(2)(b)

§ 87(2)(b)

Allegation D – Abuse of Authority: PO Michael Greaney searched § 87(2)(b)

§ 87(2)(b)

Allegation E – Discourtesy: PO Michael Greaney spoke obscenely and/or rudely to

§ 87(2)(b)

§ 87(2)(g)

[REDACTED]

For these reasons, it is

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date